PETITION - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

IN THE ..... COURT
(The court with jurisdiction over the offence for which the person was arrested, filed through its clerk - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION OF AN ARREST RECORD WHERE THE COURT HAS NO HISTORY OF THE ARREST, T.C.A. Sec. 40-32-109

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-109; T.C.A. Sec. 40-32-109(a); T.C.A. Sec. 40-32-109(b); T.C.A. Sec. 40-32-109(c); T.C.A. Sec. 40-32-109(d); T.C.A. Sec. 40-32-109(e); T.C.A. Sec. 40-32-109(f); T.C.A. Sec. 40-32-102(c)(1); T.C.A. Sec. 40-32-110; T.C.A. Sec. 8-21-401 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Expunction of the arrest record, with the Sec. 40-32-110 effect expressly applied by Sec. 40-32-109(f): the petitioner is entitled to have all public records destroyed, is restored in contemplation of law to the status occupied before the arrest, must not suffer adverse effects or collateral disabilities by virtue of the offence, and is not guilty of perjury for failing to acknowledge the arrest in response to any inquiry. A person whose arrest record exists but for whom the court with jurisdiction over the offence for which the person was arrested has no history of the arrest within the court's records. This is the participant whose arrest never produced a court file - the case that the Sec. 40-32-106 route cannot reach, because that route runs to the court having jurisdiction in the previous action and here there is no previous action in that court's records. This is the only one of the four additions that does NOT run through Sec. 40-32-108, and it is the only Tennessee route in the entire chapter on which the participant writes the operative petition. Section 40-32-109 contains no cross-reference to Sec. 40-32-108 of any kind, so Sec. 40-32-108(e) - under which the office of the district attorney general must prepare the petition and proposed order - does not reach it. It also carries no waiting period, no 61-day pre-order clock, no rebuttable presumption and no two-year refiling bar, all of which live in Sec. 40-32-108 alone. Section 40-32-109(a) uses the permissive 'may petition', where Sec. 40-32-108(a) uses 'shall petition'. Codified through Public Chapter 608. Untouched by Public Chapters 719, 930 and 1061. Six subsections, (a) through (f), with no further subdivision numbering.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - arrest offence and agency] What were you arrested for, and which agency arrested you?
.....
.....

[C2 - arrest date] What is the date of the arrest?
.....
.....

[C3 - county and court] In which county did the arrest happen, and which court would have had jurisdiction over that offence?
.....
.....

[C4 - ever arraigned or appeared] Were you ever arraigned, did you ever appear in court, and were you ever given a court date or a case number for this arrest?
.....
.....

[C5 - court file exists] As far as you know, does any court file or court case exist for this arrest?
.....
.....

[C6 - state control number] What is the state control number on your TBI criminal history, and what does that history show about this arrest?
.....
.....

[C7 - disposition that court recorded] Did this arrest end in a dismissal, a no true bill, a nolle prosequi, an acquittal, or a release without charge that the court actually recorded? If it did, the free Sec. 40-32-106 route is the right one instead.
.....
.....

[C8 - evidence of absence] Is there anything you can file that bears on there being no court record - a letter from a clerk, a records search result, anything else?
(Asked because Sec. 40-32-109(b) permits the petitioner to file evidence, not because anything is required.)
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-109; T.C.A. Sec. 40-32-109(a); T.C.A. Sec. 40-32-109(b); T.C.A. Sec. 40-32-109(c); T.C.A. Sec. 40-32-109(d); T.C.A. Sec. 40-32-109(e); T.C.A. Sec. 40-32-109(f); T.C.A. Sec. 40-32-102(c)(1); T.C.A. Sec. 40-32-110; T.C.A. Sec. 8-21-401.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

CLERK SEARCH AND CERTIFICATION INSTRUCTIONS - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the clerk search and certification instructions component prescribed by the committed route contract.

CLERK SEARCH AND CERTIFICATION DIRECTIONS

- The court with jurisdiction over the offence for which the person was arrested, filed through its clerk
- The court with jurisdiction over the offence for which the person was arrested, per Sec. 40-32-109(a). The section states that forum inside the eligibility clause rather than as a standalone filing directive, and supplies it by implication: it is the court whose records the clerk searches under (c) and whose clerk serves the district attorney general under (a). Service is on the district attorney general for that judicial district, which is the only express geographic anchor. There is no residence-based venue and no alternative forum.
- No TBI certificate step arises on this route. Section 40-32-102(c)(1) expressly exempts the court from submitting a certificate where the expungement is pursuant to Sec. 40-32-109, and Sec. 40-32-109(d) directs the court to review only the clerk's certification and the evidence submitted.
- Payment of the clerk's fee under T.C.A. Sec. 8-21-401, which Sec. 40-32-109(e) makes mandatory. There is no indigency, waiver or without-cost provision in Sec. 40-32-109, in express contrast to Sec. 40-32-106(a)(1). The participant must be told this route is not free before anything is prepared.

FEE DISCLOSURE - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the fee disclosure component prescribed by the committed route contract.

ROUTE DIRECTIONS

- No TBI certificate step arises on this route. Section 40-32-102(c)(1) expressly exempts the court from submitting a certificate where the expungement is pursuant to Sec. 40-32-109, and Sec. 40-32-109(d) directs the court to review only the clerk's certification and the evidence submitted.
- Payment of the clerk's fee under T.C.A. Sec. 8-21-401, which Sec. 40-32-109(e) makes mandatory. There is no indigency, waiver or without-cost provision in Sec. 40-32-109, in express contrast to Sec. 40-32-106(a)(1). The participant must be told this route is not free before anything is prepared.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR AN ARREST THAT NEVER REACHED A COURTROOM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of an arrest record where the court has no history of the arrest, T.C.A. Sec. 40-32-109.

Expunction of the arrest record, with the Sec. 40-32-110 effect expressly applied by Sec. 40-32-109(f): the petitioner is entitled to have all public records destroyed, is restored in contemplation of law to the status occupied before the arrest, must not suffer adverse effects or collateral disabilities by virtue of the offence, and is not guilty of perjury for failing to acknowledge the arrest in response to any inquiry. A person whose arrest record exists but for whom the court with jurisdiction over the offence for which the person was arrested has no history of the arrest within the court's records. This is the participant whose arrest never produced a court file - the case that the Sec. 40-32-106 route cannot reach, because that route runs to the court having jurisdiction in the previous action and here there is no previous action in that court's records. This is the only one of the four additions that does NOT run through Sec. 40-32-108, and it is the only Tennessee route in the entire chapter on which the participant writes the operative petition. Section 40-32-109 contains no cross-reference to Sec. 40-32-108 of any kind, so Sec. 40-32-108(e) - under which the office of the district attorney general must prepare the petition and proposed order - does not reach it. It also carries no waiting period, no 61-day pre-order clock, no rebuttable presumption and no two-year refiling bar, all of which live in Sec. 40-32-108 alone. Section 40-32-109(a) uses the permissive 'may petition', where Sec. 40-32-108(a) uses 'shall petition'. Codified through Public Chapter 608. Untouched by Public Chapters 719, 930 and 1061. Six subsections, (a) through (f), with no further subdivision numbering.

WHERE IT GOES

The court with jurisdiction over the offence for which the person was arrested, filed through its clerk Upon filing, the clerk serves the petition on the district attorney general for that judicial district. Both the petitioner and the district attorney general may file evidence. The clerk's office searches the court's records and certifies to the court whether there is any history of the arrest. The court reviews the clerk's certification and all evidence, and may enter the order if it finds there is no history of the arrest within the court's record. The petition on this route is the participant's own operative statutory petition, not a request to another office: Sec. 40-32-109 contains no cross-reference to Sec. 40-32-108, so the district-attorney preparation duty at Sec. 40-32-108(e) does not govern here. The clerk's certification under (c) and the court's order under (d) remain instruments of their own actors and neither is generated or pre-completed. Venue: The court with jurisdiction over the offence for which the person was arrested, per Sec. 40-32-109(a). The section states that forum inside the eligibility clause rather than as a standalone filing directive, and supplies it by implication: it is the court whose records the clerk searches under (c) and whose clerk serves the district attorney general under (a). Service is on the district attorney general for that judicial district, which is the only express geographic anchor. There is no residence-based venue and no alternative forum.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies and is mandatory. Section 40-32-109(e) provides that a person petitioning the court for expunction pursuant to the section must be charged the appropriate clerk's fee pursuant to T.C.A. Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and was not retrievable from an official Tennessee source, so no figure is quoted. This is the material difference from the Sec. 40-32-106 route, which is free. Fee waiver as recorded: None established. Section 40-32-109 contains no indigency, waiver or without-cost provision, in express contrast to Sec. 40-32-106(a)(1). Whether any general court-cost waiver reaches it was not established and none is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general for that judicial district on filing. Both the petitioner and the district attorney general may file evidence with the court under Sec. 40-32-109(b).

WHAT THE RECORD SAYS YOU MUST KNOW

- No TBI certificate step arises on this route. Section 40-32-102(c)(1) expressly exempts the court from submitting a certificate where the expungement is pursuant to Sec. 40-32-109, and Sec. 40-32-109(d) directs the court to review only the clerk's certification and the evidence submitted.
- Payment of the clerk's fee under T.C.A. Sec. 8-21-401, which Sec. 40-32-109(e) makes mandatory. There is no indigency, waiver or without-cost provision in Sec. 40-32-109, in express contrast to Sec. 40-32-106(a)(1). The participant must be told this route is not free before anything is prepared.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The court does in fact have a record of the arrest. That takes the participant out of this route entirely and into the Sec. 40-32-106 analysis, which is the free route; the participant is redirected there rather than handed off.
- The district attorney general files evidence that the court does have a history of the arrest. That converts the matter into a contested question of fact and the participant is handed off to an attorney.
- Whether a prior court action or court file ever existed is disputed. LegalEase does not adjudicate that question: the clerk searches and certifies and the court finds, so a disputed history is handed off to an attorney.
- The participant cannot establish from the TBI criminal history that an arrest record exists at all. The participant is directed back to the TBI before the route reopens.
- The participant is seeking relief for a case that reached the court and was dismissed, no-true-billed, nolle prossed or acquitted. That is the free Sec. 40-32-106 route and the participant is redirected to it rather than paying here.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- The clerk's office searches the court's records and certifies to the court whether there is any history of the arrest. That certification is a clerk instrument, it is filed either way because it certifies whether there is any

history, and it is never generated, pre-completed or predicted. The district attorney general is served by the clerk and may file evidence under (b). The court reviews and decides, and the grant is discretionary.

THE PAGES IN THIS SET

- tn_arrest_no_court_record-petition-1: the composed petition, on this route's own statutory ground (Clear an arrest that never reached a courtroom)

REQUEST TO THE DISTRICT ATTORNEY GENERAL - CLEAR A CONVICTION FOR ILLEGAL REGISTRATION OR VOTING

TO: The office of the District Attorney General for the judicial district of the convicting court
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - CLEAR A CONVICTION FOR ILLEGAL REGISTRATION OR VOTING

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court convicted you, in which county, and which judicial district is that? The request goes to that district's district attorney general.
.....
.....

Item 2. What is the docket or case number?
.....
.....

Item 3. What is the exact T.C.A. section you were convicted under? This route reaches only Sec. 2-19-107, illegal registration or voting.
.....
.....

Item 4. Does the judgment name T.C.A. Sec. 2-19-107 specifically, rather than another elections or fraud provision?
.....
.....

Item 5. On what date was the offence committed?
.....
.....

Item 6. On what date were you convicted?
.....
.....

Item 7. On what date did you complete the entire sentence? The fifteen-year clock runs from then, and it is measured on the day the petition is filed.
.....
.....

Item 8. Is every fine, restitution amount, court cost and other assessment paid in full? Anything outstanding means the sentence is not complete.

.....

.....

Item 9. Have you completed any term of imprisonment or probation and met every condition of supervised or unsupervised release?

.....

.....

Item 10. List every other conviction you have anywhere, including federal and out-of-state convictions.

.....

.....

Item 11. Did this offence happen before any conviction you have for an offence that cannot be expunged?

.....

.....

Item 12. Have you ever been granted an expunction before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)?

.....

.....

Item 13. What is the state control number on your TBI criminal history?

.....

.....

Item 14. Are you doing this to get your voting rights back? That is a separate remedy and this route does not deliver it.

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

FILING AND HANDOFF INSTRUCTIONS - CLEAR A CONVICTION FOR ILLEGAL REGISTRATION OR VOTING

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of a conviction for illegal registration or voting, T.C.A. Sec. 40-32-107(c) with procedure at Sec. 40-32-108.

Expunction of the conviction record. Under T.C.A. Sec. 40-32-110 the petitioner is entitled to have all public records of the expunged conviction destroyed in the manner set out in the chapter, restoring the person in contemplation of law to the status occupied before arrest, indictment, information, trial and conviction. A person convicted of illegal registration or voting under T.C.A. Sec. 2-19-107, where fifteen years have elapsed since completion of the sentence, every sentence requirement has been fulfilled, the offence occurred prior to any conviction for an expunction-ineligible offence, and the person has not previously been granted expunction under Sec. 40-32-107(a), (b) or (c). The fifteen-year wait is the longest in the chapter - three times the misdemeanour and Class E felony period and half again the Class C and D felony period - and it attaches to a single named offence rather than to an offence class. Codified through Public Chapter 608 and untouched by Public Chapters 719, 930 and 1061. Subsection (c) is not reached by the Sec. 40-32-108(d)(2) rebuttable presumption, which is keyed only to petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), so no presumption applies and the court weighs the interest of the petitioner against the best interests of justice and public safety.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court, then the clerk of that court

Once the district attorney general's office prepares the petition and proposed order, the petitioner files them with the clerk of the convicting court under Sec. 40-32-108(a) and pays the clerk's fee under T.C.A. Sec. 8-21-401. The generated artifact on this route is the participant's own controlled written request to the office of the district attorney general, together with the participant's controlled eligibility record. It is not the statutory petition and it is not the proposed order: T.C.A. Sec. 40-32-108(e) requires both of those to be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk. LegalEase does not draft, complete, sign or hold out either instrument as its own, and does not make the district attorney general's legal determination.

Venue: The convicting court, under Sec. 40-32-108(a). The request goes to the district attorney general for that judicial district. A person with convictions in more than one judicial district deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. T.C.A. Sec. 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and

was not retrievable from an official Tennessee source, so no figure is quoted. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized T.C.A. Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner and may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- The TBI certificate under T.C.A. Sec. 40-32-102(c) is required on this route and an order of expunction must not be entered unless it is attached. It is a court instrument completed by court staff and submitted to the TBI. LegalEase does not generate it, does not complete it and does not assert it has been obtained.
- Not official_pdf_fill, because no participant form exists: the Tennessee AOC publishes no expunction form of any kind, and TBI form BI-0333 is a court order carrying an approved-for-entry block with signature lines for defence, the district attorney general and the judge. Not process_guidance, because a genuine participant-facing written submission exists and its destination, addressee and operative content are all determined. The generated artifact is the request and the eligibility record, never the petition, the proposed order, the TBI certificate or the clerk's instrument.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The office of the district attorney general declines to prepare the petition, or indicates it will oppose. Self-help stops and the participant is handed off to an attorney; the participant keeps the generated request, the controlled factual record and the instructions.
- Eligibility is disputed by the district attorney general's office. That is a contested determination for that office and, on filing, for the court; it is handed off to an attorney rather than argued in the packet.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee. Handed off to an attorney before anything is sent.
- Any unpaid court costs, fines, restitution or other assessments, which mean the sentence is not complete. The participant is directed to the convicting court's clerk to resolve the balance before the route reopens.
- Any borderline offence whose exact section cannot be matched against the current eligible list. Handed off to an attorney.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- Any question whether the conviction was under T.C.A. Sec. 2-19-107 rather than another elections or fraud provision. The route reaches only that section, so an unresolved identification is handed off to an attorney rather than guessed.
- Any collateral question about restoration of voting rights, which is a separate remedy under separate machinery and is referred out.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. They are

prosecutor instruments. LegalEase generates the participant's request and eligibility record and nothing else, and never characterises either generated document as the district attorney general's petition or proposed order.

THE PAGES IN THIS SET

- tn_illegal_voting-participant-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Clear a conviction for illegal registration or voting)
- tn_illegal_voting-participant-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Clear a conviction for illegal registration or voting)

PETITION - CLEAR AN ARREST THAT WAS NOT YOURS

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION WHERE THE PERSON WAS ARRESTED OR CHARGED DUE TO MISTAKEN IDENTITY, T.C.A. Sec. 40-32-106(A)(1)(H)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(a)(1)(H); T.C.A. Sec. 40-32-101; T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Mistaken identity is one of the enumerated non-conviction grounds in the reorganized Sec. 40-32-106(a)(1), and Public Chapter 268 of 2025 rewrote Sec. 40-32-101 as a chapter-wide definitions section that defines mistaken identity for the whole chapter. Relief runs on the same free petition vehicle as the other non-conviction grounds, with an added factual showing that the person was arrested or charged because of a case of mistaken identity. The pre-reorganization provision the controlling review cited, former Sec. 40-32-101(a)(1)(C)(i), also allowed the petitioner to provide evidence of the circumstances and request that the court order the expunction be expedited, on which finding the court was to order the TBI and any other expunging entity to act in an expedited manner. Whether that expedited-order duty survived the reorganization in the same terms was not established from an official source on 2026-08-06, and it is not asserted here.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - mistaken identity account] In your own words, how did this arrest or charge come to be attached to your name when it was not you?
.....
.....

[C9 - identity evidence] What do you have that shows it was not you - where you were at the time, identification documents, fingerprints, or anything else?
.....
.....

[C10 - expedited needed] Is there a job, a licence or a housing application that makes speed matter here?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec.

40-32-106(a)(1)(H); T.C.A. Sec. 40-32-101; T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

REQUEST FOR EXPEDITED CONSIDERATION - CLEAR AN ARREST THAT WAS NOT YOURS

TO: The county criminal, circuit or general sessions court having jurisdiction in the previous action
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST FOR EXPEDITED CONSIDERATION

I am asking for this matter to be taken up quickly, for the reason I give below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR AN ARREST THAT WAS NOT YOURS

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction where the person was arrested or charged due to mistaken identity, T.C.A. Sec. 40-32-106(a)(1)(H).

Mistaken identity is one of the enumerated non-conviction grounds in the reorganized Sec. 40-32-106(a)(1), and Public Chapter 268 of 2025 rewrote Sec. 40-32-101 as a chapter-wide definitions section that defines mistaken identity for the whole chapter. Relief runs on the same free petition vehicle as the other non-conviction grounds, with an added factual showing that the person was arrested or charged because of a case of mistaken identity. The pre-reorganization provision the controlling review cited, former Sec. 40-32-101(a)(1)(C)(i), also allowed the petitioner to provide evidence of the circumstances and request that the court order the expunction be expedited, on which finding the court was to order the TBI and any other expunging entity to act in an expedited manner. Whether that expedited-order duty survived the reorganization in the same terms was not established from an official source on 2026-08-06, and it is not asserted here.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action
Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: None. Mistaken identity is one of the Sec. 40-32-106(a)(1) grounds, and those records must be removed and destroyed without cost to the person. Fee waiver as recorded: Not applicable - no fee is charged.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any dispute about whether the participant is in fact the person arrested or charged. Proving mistaken identity is a factual showing, and a contested one is outside self-help.
- The participant cannot document the circumstances at all.

THE PAGES IN THIS SET

- tn_mistaken_identity-petition-1: the composed petition, on this route's own statutory ground (Clear an arrest that was not yours)
- tn_mistaken_identity-expedited-request-2: the written request asking for the matter to be taken up quickly (Clear an arrest that was not yours)

PETITION - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

FREE EXPUNCTION OF A NON-CONVICTION RECORD BY PETITION, T.C.A. Sec. 40-32-106(A)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-106(a)(2); T.C.A. Sec. 40-32-102; T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-102(e); T.C.A. Sec. 40-32-110; T.C.A. Sec. 40-6-204(b) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Created by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608 effective 2026-03-25. All public records of a person charged with a misdemeanour or felony must, upon petition by that person to the court having jurisdiction in the previous action, be removed and destroyed without cost to the person where the charge was dismissed other than by diversion completion, a no true bill was returned, the person was arrested and released without being charged, a nolle prosequi was entered, a verdict of not guilty was returned, or on the section's further grounds including qualifying implied-consent dismissals, abatement by death, mistaken identity and racial-justice-protest convictions. Subsection (a)(2) extends the same no-cost treatment to a successfully defended order of protection and to expired bonds under Sec. 38-3-109. There is no waiting period. The TBI certificate under Sec. 40-32-102(c) is not required for a Sec. 40-32-106 expunction unless the expunction resulted from successful completion of pretrial or judicial diversion. Under Sec. 40-32-110 expunction restores the person, in contemplation of law, to the status occupied before arrest, indictment, information, trial and conviction, and under Sec. 40-32-102(e) the expunged records are confidential and unlawful release is a Class A misdemeanour.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in

each county where you have a case.
.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - disposition ground] Which of these describes how the case ended - dismissed, no true bill returned by the grand jury, arrested and released without being charged, nolle prosequi, or found not guilty?
.....
.....

[C9 - came through diversion] Was the case dismissed because you completed a diversion programme? If so this is a different, non-free route.
.....
.....

[C10 - any count convicted] Did any count in the case end in a conviction?
.....
.....

[C11 - other counties] Do you have cases in any other Tennessee county? Each county needs its own filing.
.....
.....

[C12 - court file ever existed] Did a court case, a court file or any previous court action ever exist for this matter - were you arraigned, did you appear, were you given a court date or a case number? If nothing ever reached the court, a different route applies and it carries a fee.
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-106(a)(2); T.C.A. Sec. 40-32-102; T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-102(e); T.C.A. Sec. 40-32-110; T.C.A. Sec. 40-6-204(b).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

NO COST STATEMENT - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the no cost statement component prescribed by the committed route contract.

ROUTE DIRECTIONS

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- Add T.C.A. Sec. 40-6-204(b) to participant education: a person being charged with a crime must be informed that if the charges are dismissed or nolle prossed, or no charges are filed, they are entitled on request to removal and destruction of all public records without cost. Participants often do not know this was said to them. The current text of Sec. 40-6-204 could not be retrieved from an official Tennessee source on 2026-08-06, so the packet names the right and its statutory home without quoting the provision.
- The court certifies to the TBI before entry where a certificate is required, and forwards the order within 30 days. On this route no certificate is required unless the case came through diversion.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Free expunction of a non-conviction record by petition, T.C.A. Sec. 40-32-106(a).

Created by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608 effective 2026-03-25. All public records of a person charged with a misdemeanour or felony must, upon petition by that person to the court having jurisdiction in the previous action, be removed and destroyed without cost to the person where the charge was dismissed other than by diversion completion, a no true bill was returned, the person was arrested and released without being charged, a nolle prosequi was entered, a verdict of not guilty was returned, or on the section's further grounds including qualifying implied-consent dismissals, abatement by death, mistaken identity and racial-justice-protest convictions. Subsection (a)(2) extends the same no-cost treatment to a successfully defended order of protection and to expired bonds under Sec. 38-3-109. There is no waiting period. The TBI certificate under Sec. 40-32-102(c) is not required for a Sec. 40-32-106 expunction unless the expunction resulted from successful completion of pretrial or judicial diversion. Under Sec. 40-32-110 expunction restores the person, in contemplation of law, to the status occupied before arrest, indictment, information, trial and conviction, and under Sec. 40-32-102(e) the expunged records are confidential and unlawful release is a Class A misdemeanour.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: None. Section 40-32-106(a)(1) requires the records to be removed and destroyed without cost to the person, and the general assembly's stated intent is that no fee ever be charged where the charge was dismissed for a reason other than successful diversion completion. Fee waiver as recorded: Not applicable on this route - no fee is charged. Where a clerk nonetheless assesses court costs on the underlying case, the AOC indicates those may be waivable, but no mechanism or form is identified.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general in the ordinary course. The district attorney may

respond.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- Add T.C.A. Sec. 40-6-204(b) to participant education: a person being charged with a crime must be informed that if the charges are dismissed or nolle prossed, or no charges are filed, they are entitled on request to removal and destruction of all public records without cost. Participants often do not know this was said to them. The current text of Sec. 40-6-204 could not be retrieved from an official Tennessee source on 2026-08-06, so the packet names the right and its statutory home without quoting the provision.
- The court certifies to the TBI before entry where a certificate is required, and forwards the order within 30 days. On this route no certificate is required unless the case came through diversion.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any count in the case resulted in a conviction, which routes to the redaction analysis.
- The dismissal followed completion of a diversion programme, which routes to the diversion tracks.
- The participant is being asked to pay for this route, which the statute says is free.
- Whether any court case, court file or previous court action ever existed is disputed or cannot be established. LegalEase does not adjudicate that question; the participant is handed off to an attorney, and where the answer is that nothing reached the court the route is tn_arrest_no_court_record rather than this one.

THE PAGES IN THIS SET

- tn_nonconviction_petition-petition-1: the composed petition, on this route's own statutory ground (Clear a charge that did not end in a conviction)

NO COURT HISTORY ROUTING - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the no court history routing component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- Narrowed by the integrated Tennessee 2026 route inventory decision. This route no longer reaches an arrest for which the court with jurisdiction has no history within its records; that population is governed by T.C.A. Sec. 40-32-109 and routes to tn_arrest_no_court_record. The distinction is material to the participant in three ways: a different statutory vehicle, a mandatory clerk's fee where this route is free, and a clerk record-search and certification step that has no analogue here. The two mechanisms are not merged.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any count in the case resulted in a conviction, which routes to the redaction analysis.
- The dismissal followed completion of a diversion programme, which routes to the diversion tracks.
- The participant is being asked to pay for this route, which the statute says is free.
- Whether any court case, court file or previous court action ever existed is disputed or cannot be established. LegalEase does not adjudicate that question; the participant is handed off to an attorney, and where the answer is that nothing reached the court the route is tn_arrest_no_court_record rather than this one.

REQUEST TO THE DISTRICT ATTORNEY GENERAL - CLEAR A CONVICTION YOU HAVE BEEN PARDONED FOR

TO: The office of the District Attorney General for the judicial district of the convicting court
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - CLEAR A CONVICTION YOU HAVE BEEN PARDONED FOR

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court convicted you, in which county, and which judicial district is that?
.....
.....

Item 2. What is the docket or case number?
.....
.....

Item 3. What is the exact T.C.A. section you were convicted under? It is tested against a closed list of seven excluded felonies.
.....
.....

Item 4. Have you received a pardon from the Governor, and on what date?
.....
.....

Item 5. Did the board of parole return a positive vote to receive a pardon, and on what date?
.....
.....

Item 6. Was the conviction for an attempt, conspiracy, facilitation or solicitation to commit an offence? The exclusion list reaches those forms expressly.
.....
.....

Item 7. Was the offence a sexual offence requiring registration as a sexual offender or violent sexual offender, or any sexual offence involving a minor?
.....
.....

Item 8. In your own words, is there anything you want the court to know about whether the offence was violent? After the 2026 amendment this is something the court weighs rather than a bar, and it is your account to give.

.....

.....

Item 9. Have you ever been granted an expunction before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)? Subsection (d) states no bar of its own, so this is recorded rather than applied against you.

.....

.....

Item 10. What is the state control number on your TBI criminal history?

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

FILING AND HANDOFF INSTRUCTIONS - CLEAR A CONVICTION YOU HAVE BEEN PARDONED FOR

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of a pardoned conviction, T.C.A. Sec. 40-32-107(d) as amended by Public Chapter 719, with procedure at Sec. 40-32-108.

Expunction of the pardoned conviction record, with the Sec. 40-32-110 effect. The pardon by itself does not clear the record; it opens this route. A person who received a pardon from the Governor following a positive vote of the Board of Parole recommending it, who petitions the convicting court, and whose conviction the judge finds was not for one of seven enumerated felonies, or an attempt, conspiracy, facilitation or solicitation to commit one of them: first degree murder under Sec. 39-13-202; second degree murder under Sec. 39-13-210; especially aggravated kidnapping under Sec. 39-13-305; aggravated child abuse under Sec. 39-15-402; especially aggravated robbery under Sec. 39-13-403; commission of an act of terrorism under Sec. 39-13-805; or a sexual offence for which the offender must register as a sexual offender or violent sexual offender under chapter 39, part 2 of title 40, or any sexual offence involving a minor. Codified through Public Chapter 608 and then amended by Public Chapter 719, effective 2026-04-14. Public Chapter 719 Section 1 deleted from Sec. 40-32-107(d)(1) the language 'was convicted of a nonviolent crime if the person', and Section 2 deleted and substituted Sec. 40-32-107(d)(1)(A), replacing an open-textured judicial finding that the offence was a nonviolent crime with a closed list of excluded felonies. Public Chapter 719 Section 3 rewrote Sec. 40-32-108(d)(2). Confirmed from the enacted text and material to the design: subsection (d) contains no waiting period, no sentence-completion checklist, no no-prior-expunction bar and no requirement that the offence predate a conviction for an expunction-ineligible offence. Those conditions appear in subsections (b) and (c) but not in (d). Its three requirements at (d)(1)(A), (B) and (C) are cumulative and exhaustive: the judicial finding against the seven-item exclusion list, a positive vote from the board of parole to receive a pardon, and receipt of a pardon by the governor. The eligibility screen for this route must therefore not import the (a) or (c) conditions, which would wrongly refuse petitioners the statute admits. Public Chapter 719 Section 3 rewrote Sec. 40-32-108(d)(2) so that the court weighs the interest of the petitioner against the best interests of justice and public safety; the rebuttable presumption that the petition should be granted is preserved only for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E). A subsection (d) petitioner therefore gets no presumption, and the court instead considers whether the offence sought to be expunged was violent and any other relevant factors presented by the petitioner and the district attorney general. Violence moved from a jurisdictional bar to a merits consideration.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court, then the clerk of that court
Once the district attorney general's office prepares the petition and proposed order, the petitioner files them with the clerk of the convicting court under Sec. 40-32-108(a) and pays the clerk's fee under T.C.A. Sec. 8-21-401. The generated artifact on this route is the participant's own controlled written request to

the office of the district attorney general, together with the participant's controlled eligibility record. It is not the statutory petition and it is not the proposed order: T.C.A. Sec. 40-32-108(e) requires both of those to be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk. LegalEase does not draft, complete, sign or hold out either instrument as its own, and does not make the district attorney general's legal determination.
Venue: The convicting court, under Sec. 40-32-108(a). The request goes to the district attorney general for that judicial district. A person with convictions in more than one judicial district deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. T.C.A. Sec. 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and was not retrievable from an official Tennessee source, so no figure is quoted. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized T.C.A. Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner and may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- The TBI certificate under T.C.A. Sec. 40-32-102(c) is required on this route and an order of expunction must not be entered unless it is attached. It is a court instrument completed by court staff and submitted to the TBI. LegalEase does not generate it, does not complete it and does not assert it has been obtained.
- Not official_pdf_fill, because no participant form exists: the Tennessee AOC publishes no expunction form of any kind, and TBI form BI-0333 is a court order carrying an approved-for-entry block with signature lines for defence, the district attorney general and the judge. Not process_guidance, because a genuine participant-facing written submission exists and its destination, addressee and operative content are all determined. The generated artifact is the request and the eligibility record, never the petition, the proposed order, the TBI certificate or the clerk's instrument.
- Public Chapter 719 Section 3 rewrote Sec. 40-32-108(d)(2) so that the court weighs the interest of the petitioner against the best interests of justice and public safety; the rebuttable presumption that the petition should be granted is preserved only for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E). A subsection (d) petitioner therefore gets no presumption, and the court instead considers whether the offence sought to be expunged was violent and any other relevant factors presented by the petitioner and the district attorney general. Violence moved from a jurisdictional bar to a merits consideration.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The office of the district attorney general declines to prepare the petition, or indicates it will oppose. Self-help stops and the participant is handed off to an attorney; the participant keeps the generated request, the controlled factual record and the instructions.
- Eligibility is disputed by the district attorney general's office. That is a contested determination for that office and, on filing, for the court; it is handed off to an attorney rather than argued in the packet.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee. Handed off to an attorney before anything is sent.
- Any unpaid court costs, fines, restitution or other assessments, which mean the sentence is not complete. The participant is directed to the convicting court's clerk to resolve the balance before the route reopens.
- Any borderline offence whose exact section cannot be matched against the current eligible list. Handed off to an attorney.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- Any case where the conviction may fall within one of the seven excluded felony categories, or within an attempt, conspiracy, facilitation or solicitation form of one. Handed off to an attorney rather than tested in the packet.
- Any case where the violence question is genuinely contested. After Public Chapter 719 it is a merits factor the court weighs, and arguing it is individualized advocacy; the participant is handed off to an attorney.
- Any participant who does not yet hold a pardon. The clemency application is a separate proceeding before the board of parole and the Governor and is referred out.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. They are prosecutor instruments. LegalEase generates the participant's request and eligibility record and nothing else, and never characterises either generated document as the district attorney general's petition or proposed order.

THE PAGES IN THIS SET

- tn_post_pardon-participant-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Clear a conviction you have been pardoned for)
- tn_post_pardon-participant-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Clear a conviction you have been pardoned for)

PETITION - CLEAR A CASE AFTER COMPLETING PRETRIAL DIVERSION

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION AFTER SUCCESSFUL COMPLETION OF PRETRIAL DIVERSION, T.C.A. Sec. 40-32-106(D)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(d)(1); T.C.A. Sec. 40-32-106(d)(2); T.C.A. Sec. 40-32-106(d)(3); T.C.A. Sec. Sec. 40-15-102 through 40-15-107; T.C.A. Sec. 40-15-105; T.C.A. Sec. 40-32-102(c); T.C.A. Sec. 8-21-401; T.C.A. Sec. 40-39-202 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Prosecution is suspended under a memorandum of understanding with the district attorney general; the person does not plead guilty and is not found guilty. On successful completion the charges are dismissed, and under T.C.A. Sec. 40-32-106(d)(1) the person may then petition for expunction of the public records where the charges were dismissed as a result of successful completion of a pretrial diversion programme pursuant to Sec. Sec. 40-15-102 through 40-15-107. The provision is permissive as to filing and mandatory as to nothing: a petition is required and expunction is not automatic. Section 40-32-106(d)(3) requires the appropriate clerk's fee under Sec. 8-21-401, so unlike a straight dismissal this route is not free. Section 40-32-106(d)(2) bars expunction where the diverted offence was a sexual offence or a violent sexual offence as defined in Sec. 40-39-202. The TBI certificate under Sec. 40-32-102(c) is required here, because the exemption for Sec. 40-32-106 expunctions is expressly carved back where the expunction resulted from successful completion of pretrial diversion.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.

.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - diversion kind] Was it pretrial diversion, where you did not plead guilty and prosecution was suspended, or judicial diversion, where you entered a plea but no judgment of conviction was entered?
.....
.....

[C9 - successfully completed] Did you successfully complete everything the diversion required, and were the charges then dismissed?
.....
.....

[C10 - sexual offence] Was the offence a sexual offence or a violent sexual offence as Tennessee defines those for the registry? Those can be diverted but cannot be expunged.
.....
.....

[C11 - petition filed before] Have you already filed a petition to expunge this case?
.....
.....

[C12 - mou with da] Did you sign a memorandum of understanding with the district attorney general suspending prosecution, without pleading guilty?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(d)(1); T.C.A. Sec. 40-32-106(d)(2); T.C.A. Sec. 40-32-106(d)(3); T.C.A. Sec. Sec. 40-15-102 through 40-15-107; T.C.A. Sec. 40-15-105; T.C.A. Sec. 40-32-102(c); T.C.A. Sec. 8-21-401; T.C.A. Sec. 40-39-202.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

CERTIFICATION AND FEE INSTRUCTIONS - CLEAR A CASE AFTER COMPLETING PRETRIAL DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the certification and fee instructions component prescribed by the committed route contract.

ROUTE DIRECTIONS

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- A petition is still required after diversion. Completing diversion dismisses the case but leaves it visible until a separate expunction petition is filed, and this is the second most common Tennessee misunderstanding after the not-automatic point.
- The order of expungement is marked Suspension of Prosecution Sec. 40-15-105 for a pretrial diversion case, which is how the TBI records it. The marking requirement is part of the court's instrument rather than the participant's.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR A CASE AFTER COMPLETING PRETRIAL DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction after successful completion of pretrial diversion, T.C.A. Sec. 40-32-106(d).

Prosecution is suspended under a memorandum of understanding with the district attorney general; the person does not plead guilty and is not found guilty. On successful completion the charges are dismissed, and under T.C.A. Sec. 40-32-106(d)(1) the person may then petition for expunction of the public records where the charges were dismissed as a result of successful completion of a pretrial diversion programme pursuant to Sec. Sec. 40-15-102 through 40-15-107. The provision is permissive as to filing and mandatory as to nothing: a petition is required and expunction is not automatic. Section 40-32-106(d)(3) requires the appropriate clerk's fee under Sec. 8-21-401, so unlike a straight dismissal this route is not free. Section 40-32-106(d)(2) bars expunction where the diverted offence was a sexual offence or a violent sexual offence as defined in Sec. 40-39-202. The TBI certificate under Sec. 40-32-102(c) is required here, because the exemption for Sec. 40-32-106 expunctions is expressly carved back where the expunction resulted from successful completion of pretrial diversion.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action
Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. Section 40-32-106(d)(3) requires the appropriate clerk's fee pursuant to T.C.A. Sec. 8-21-401 for destroying the records, which is the asymmetry a participant should be warned about: diversion is a non-conviction outcome but it is not free, whereas a straight dismissal is. The amount is set by Sec. 8-21-401 and no figure is quoted here. Fee waiver as recorded: No indigency or fee-waiver provision appears in the reorganized Sec. Sec. 40-32-106 to 40-32-110. The TBI operates an unpublished indigency procedure for its separate diversion certificate fee, requiring a form signed by the judge that it supplies on request and does not publish. No waiver mechanism for the clerk's expunction fee was identified.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- A petition is still required after diversion. Completing diversion dismisses the case but leaves it visible until a separate expunction petition is filed, and this is the second most common Tennessee misunderstanding after the not-automatic point.
- The order of expungement is marked Suspension of Prosecution Sec. 40-15-105 for a pretrial diversion case, which is how the TBI records it. The marking requirement is part of the court's instrument rather than the participant's.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The offence was a sexual offence or a violent sexual offence as defined in T.C.A. Sec. 40-39-202. It could be diverted but it cannot be expunged, and the participant needs to be told that plainly rather than sold a petition.
- The diversion was not successfully completed, or completion is disputed.
- The participant's goal involves federal employment or a security clearance, since a judicial diversion guilty plea may remain visible there.

THE PAGES IN THIS SET

- tn_pretrial_diversion-petition-1: the composed petition, on this route's own statutory ground (Clear a case after completing pretrial diversion)

REQUEST TO THE DISTRICT ATTORNEY GENERAL - CLEAR AN ELIGIBLE OFFENCE AFTER FINISHING RECOVERY COURT, WHERE AN OLD DUI IS IN THE WAY

TO: The office of the District Attorney General for the judicial district of the convicting court
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - CLEAR AN ELIGIBLE OFFENCE AFTER FINISHING RECOVERY COURT, WHERE AN OLD DUI IS IN THE WAY

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court convicted you of the offence you want cleared, in which county, and which judicial district is that?
.....
.....

Item 2. What is the docket or case number for that offence?
.....
.....

Item 3. What is the exact T.C.A. section of the offence you want cleared? It has to be on the Sec. 40-32-107(a)(1) eligible lists in its own right.
.....
.....

Item 4. Does the offence you want cleared involve a motor vehicle together with alcohol or a controlled substance? If it does, this route is closed for it.
.....
.....

Item 5. How many convictions do you have under T.C.A. Sec. 55-10-401 for driving under the influence? More than one closes this route.
.....
.....

Item 6. What is the date of that DUI conviction? The ten-year interval runs from it.
.....
.....

Item 7. On what date was the offence you want cleared committed? It must be at least ten years after the DUI conviction.

.....
.....

Item 8. Did you successfully complete a certified recovery court programme, and on what date?
.....
.....

Item 9. On what date did you complete the entire sentence for the offence you want cleared?
.....
.....

Item 10. Is every fine, restitution amount, court cost and other assessment for that offence paid in full?
.....
.....

Item 11. Have you completed any term of imprisonment or probation for that offence and met every condition of supervised or unsupervised release?
.....
.....

Item 12. Have you ever been granted an expunction before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)?
.....
.....

Item 13. What is the state control number on your TBI criminal history?
.....
.....

Item 14. Are you hoping to clear the DUI itself? This route cannot do that, and it is important you know before anything is prepared.
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

FILING AND HANDOFF INSTRUCTIONS - CLEAR AN ELIGIBLE OFFENCE AFTER FINISHING RECOVERY COURT, WHERE AN OLD DUI IS IN THE WAY

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction after completion of a certified recovery court programme following a prior DUI conviction, T.C.A. Sec. 40-32-107(e) added by Public Chapter 1061, with procedure at Sec. 40-32-108.

Expunction of one otherwise-eligible offence, with the Sec. 40-32-110 effect. It does not expunge the DUI. A person seeking expunction of an offence that is eligible for expunction under Sec. 40-32-107(a)(1) and that occurred at least ten years after the person's conviction for an offence under T.C.A. Sec. 55-10-401; who has fulfilled all requirements of the sentence for the offence being expunged, including payment of all fines, restitution, court costs and other assessments, completion of any term of imprisonment or probation, and meeting all conditions of supervised or unsupervised release; who has successfully completed a certified recovery court programme established under title 16; who has not previously been granted expunction under subsection (a), (b), (c) or (e); and who has not been convicted under Sec. 55-10-401 more than one time. This is a relief-from-the-DUI-bar route, not a DUI-expunction route, and reading it the other way would be the single most damaging error available on it. A DUI under Sec. 55-10-401 is itself expunction-ineligible and appears in the Sec. 40-32-107(a)(1)(D) misdemeanour exclusion list, and Sec. 40-32-107(e)(3) provides that a court shall not grant an expunction under the subsection if the offence sought to be expunged involves a motor vehicle and the use of alcohol or a controlled substance, including but not limited to a violation of Sec. 55-10-401. What subsection (e) does is let a person who carries one DUI conviction expunge a different, otherwise-eligible offence committed at least ten years after it - relief that Sec. 40-32-107(a)(3)(A) would otherwise deny, because that provision requires the offence to have occurred prior to any conviction for an expunction-ineligible offence. Added in its entirety by Public Chapter 1061, the Recovery Court Renewal Act, SB1232 / HB1346, effective 2026-07-01. Public Chapter 1061 Section 3 provides that the act takes effect July 1, 2026, the public welfare requiring it, and - unlike Public Chapter 930 - imposes no offence-date limitation, so it applies on its effective date to qualifying petitioners regardless of when the offence was committed. Subsection (e) is not named in the Sec. 40-32-108(d)(2) rebuttable presumption, which reaches only petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), and it is not reached by the violence-weighing sentence Public Chapter 719 added for subsection (d) petitioners. An (e) petitioner therefore falls into the bare default: the court weighs the interest of the petitioner against the best interests of justice and public safety.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court, then the clerk of that court
Once the district attorney general's office prepares the petition and proposed order, the petitioner files them with the clerk of the convicting court under Sec. 40-32-108(a) and pays the clerk's fee under T.C.A. Sec. 8-21-401. The generated artifact on this route is the participant's own controlled written request to the office of the district attorney general, together with the participant's controlled eligibility record. It is

not the statutory petition and it is not the proposed order: T.C.A. Sec. 40-32-108(e) requires both of those to be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk. LegalEase does not draft, complete, sign or hold out either instrument as its own, and does not make the district attorney general's legal determination.
Venue: The convicting court, under Sec. 40-32-108(a). The request goes to the district attorney general for that judicial district. A person with convictions in more than one judicial district deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. T.C.A. Sec. 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and was not retrievable from an official Tennessee source, so no figure is quoted. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized T.C.A. Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner and may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- The TBI certificate under T.C.A. Sec. 40-32-102(c) is required on this route and an order of expunction must not be entered unless it is attached. It is a court instrument completed by court staff and submitted to the TBI. LegalEase does not generate it, does not complete it and does not assert it has been obtained.
- Not official_pdf_fill, because no participant form exists: the Tennessee AOC publishes no expunction form of any kind, and TBI form BI-0333 is a court order carrying an approved-for-entry block with signature lines for defence, the district attorney general and the judge. Not process_guidance, because a genuine participant-facing written submission exists and its destination, addressee and operative content are all determined. The generated artifact is the request and the eligibility record, never the petition, the proposed order, the TBI certificate or the clerk's instrument.
- Subsection (e) is not named in the Sec. 40-32-108(d)(2) rebuttable presumption, which reaches only petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), and it is not reached by the violence-weighing sentence Public Chapter 719 added for subsection (d) petitioners. An (e) petitioner therefore falls into the bare default: the court weighs the interest of the petitioner against the best interests of justice and public safety.
- Public Chapter 930 applies to this route only as the integrated decision states: it relocates burglary within the Sec. 40-32-107(a)(1) class lists for offences committed on or after 2026-07-01, and reaches subsection (e) only because (e)(1)(A)(i) requires the offence to be eligible under (a)(1). Public Chapter 1061 itself carries no offence-date limitation.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The office of the district attorney general declines to prepare the petition, or indicates it will oppose. Self-help stops and the participant is handed off to an attorney; the participant keeps the generated request, the controlled factual record and the instructions.
- Eligibility is disputed by the district attorney general's office. That is a contested determination for that office and, on filing, for the court; it is handed off to an attorney rather than argued in the packet.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee. Handed off to an attorney before anything is sent.
- Any unpaid court costs, fines, restitution or other assessments, which mean the sentence is not complete. The participant is directed to the convicting court's clerk to resolve the balance before the route reopens.
- Any borderline offence whose exact section cannot be matched against the current eligible list. Handed off to an attorney.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- The participant wants the DUI itself expunged. Subsection (e)(3) forbids it. The packet says so plainly and the participant is referred to an attorney if they want that question examined further.
- The offence being expunged involves a motor vehicle and the use of alcohol or a controlled substance, which is an absolute bar under (e)(3) even where every other condition is met. Handed off to an attorney.
- More than one conviction under T.C.A. Sec. 55-10-401, which closes the route under (e)(1)(E). Handed off to an attorney.
- The ten-year interval between the DUI conviction and the offence being expunged cannot be established from the judgments. The participant is directed to the clerks of both courts before the route reopens.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. They are prosecutor instruments. LegalEase generates the participant's request and eligibility record and nothing else, and never characterises either generated document as the district attorney general's petition or proposed order.

THE PAGES IN THIS SET

- tn_recovery_court-participant-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Clear an eligible offence after finishing recovery court, where an old DUI is in the way)
- tn_recovery_court-participant-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Clear an eligible offence after finishing recovery court, where an old DUI is in the way)

MOTION FOR PARTIAL REMOVAL - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

PARTIAL REMOVAL OF RECORDS OF CHARGES NOT RESULTING IN CONVICTION IN A MIXED CASE, T.C.A. Sec. 40-32-106(C)(2)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(c)(2); T.C.A. Sec. 40-32-106(a); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The controlling review identified this remedy from a secondary profile and left its citation unresolved as the highest-value Tennessee research item. It is resolved: Public Chapter 268 of 2025 created a partial database removal provision at T.C.A. Sec. 40-32-106(c)(2), and the TBI's own form BI-0334, revision 04/2025, is captioned Removal of Criminal Offender Record pursuant to T.C.A. Sec. 40-32-106(c)(2), which corroborates both the citation and the mechanism from an official source. The remedy answers the most common real-world Tennessee scenario after a clean dismissal: a multi-count case where some counts were dismissed as part of a plea and others produced a conviction. Whether the relief reaches paper records or only electronic databases was not established, and the review flags that limitation as materially changing what a participant gets.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - count by count disposition] Take the case count by count: what was each charge, and how did each one end? This route only reaches the counts that did not end in conviction.
.....
.....

[C9 - convicted counts] Which counts ended in a conviction? Those stay on your record.
.....
.....

[C10 - understands partial] This clears the dismissed counts and leaves the conviction. Is that what you are looking for?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(c)(2); T.C.A. Sec. 40-32-106(a); T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-110.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

COUNT-BY-COUNT SCHEDULE - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:
.....

COUNT-BY-COUNT SCHEDULE

One block for each charge in the case. Copy the wording from the court record itself, never from memory. Leave the blocks you do not need empty.

FIRST CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

SECOND CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

THIRD CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

FOURTH CHARGE

Offence as the record words it:
.....

Statute section:
.....

What happened to this charge, and on what date:
.....

Is this charge one you are asking to have removed? Write yes or no:
.....

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this schedule personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

SCOPE DISCLOSURE - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the scope disclosure component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- This is partial removal, not expunction of the case. The counts that produced the conviction are untouched, and on the current record the relief is established for electronic databases with paper coverage unconfirmed.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The participant expects the whole case cleared. This remedy leaves the conviction in place.
- The count-by-count dispositions cannot be established from the clerk's record.
- The participant needs the paper file cleared and not only the electronic databases, which is the limitation that was not resolved.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR THE DISMISSED COUNTS IN A CASE WHERE OTHER COUNTS STUCK

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Partial removal of records of charges not resulting in conviction in a mixed case, T.C.A. Sec. 40-32-106(c)(2).

The controlling review identified this remedy from a secondary profile and left its citation unresolved as the highest-value Tennessee research item. It is resolved: Public Chapter 268 of 2025 created a partial database removal provision at T.C.A. Sec. 40-32-106(c)(2), and the TBI's own form BI-0334, revision 04/2025, is captioned Removal of Criminal Offender Record pursuant to T.C.A. Sec. 40-32-106(c)(2), which corroborates both the citation and the mechanism from an official source. The remedy answers the most common real-world Tennessee scenario after a clean dismissal: a multi-count case where some counts were dismissed as part of a plea and others produced a conviction. Whether the relief reaches paper records or only electronic databases was not established, and the review flags that limitation as materially changing what a participant gets.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action
Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Not established for the partial removal itself. The Sec. 40-32-106(a) no-cost provision is framed around removal and destruction of the public records of a person who has been charged, and whether it reaches a (c)(2) partial removal in a mixed case was not confirmed. No figure is quoted. Fee waiver as recorded: Not established for this route.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the motion on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The participant expects the whole case cleared. This remedy leaves the conviction in place.
- The count-by-count dispositions cannot be established from the clerk's record.
- The participant needs the paper file cleared and not only the electronic databases, which is the limitation that was not resolved.

THE PAGES IN THIS SET

- tn_redaction-motion-for-partial-removal-1: the composed motion asking for removal of part of the record only (Clear the dismissed counts in a case where other counts stuck)
- tn_redaction-count-by-count-schedule-2: the charge-by-charge schedule the motion refers to (Clear the dismissed counts in a case where other counts stuck)

REQUEST TO THE DISTRICT ATTORNEY GENERAL - EXPUNGE AN ELIGIBLE CONVICTION

TO: The office of the District Attorney General for the judicial district of the convicting court
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - EXPUNGE AN ELIGIBLE CONVICTION

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....
.....

Item 2. What is the docket or case number?
.....
.....

Item 3. What was the charge, and exactly how did the case end?
.....
.....

Item 4. On what date did the case end?
.....
.....

Item 5. What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

Item 6. List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

Item 7. Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

Item 8. What is the exact T.C.A. section you were convicted under? The offence name and class are not enough - Tennessee's eligible lists are section by section.
.....
.....

Item 9. On what date was the offence committed? This matters independently of the conviction date, because a 2026 change applies only to offences committed on or after 1 July 2026.
.....
.....

Item 10. Did the conviction occur on or after 1 November 1989?
.....
.....

Item 11. On what date did you finish the entire sentence - including any imprisonment or probation, all release conditions, and every fine, restitution amount, court cost and other assessment?
.....
.....

Item 12. Is every fine, restitution amount, court cost and other assessment paid in full? Anything outstanding means the sentence is not complete and the clock has not started.
.....
.....

Item 13. Have you ever had a conviction expunged in Tennessee before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)? This route is available once in a lifetime and a previous grant under (a), (b) or (c) closes it. A grant under (e) is recorded because the statute is asymmetric on the point, and no bar is applied against you that the subsection does not state.
.....
.....

Item 14. Did you hold a commercial driver licence at the time, and did the offence involve a controlled substance or a commercial motor vehicle?
.....
.....

Item 15. Did your sentence require a period free from dependency on or abuse of alcohol or a controlled substance? If so, have you met at least one year of it?
.....
.....

Item 16. Was the conviction for burglary under T.C.A. Sec. 39-13-1002? If so, the date of the offence decides whether the wait is five years or ten.
.....
.....

Item 17. Have you received a pardon from the Governor for this conviction? If you have, a different route may reach it even where this one cannot.

.....

.....

Item 18. If a DUI conviction is what is standing in the way: have you successfully completed a certified recovery court programme, and did the offence you want cleared happen at least ten years after that DUI conviction?

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

PROCESS AND EXPECTATION INSTRUCTIONS - EXPUNGE AN ELIGIBLE CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of an eligible conviction, T.C.A. Sec. 40-32-107(a) with procedure at Sec. 40-32-108.

Public Chapter 268 of 2025 split the former Sec. 40-32-101(g) conviction route along an eligibility and procedure seam: Sec. 40-32-107 now defines who is an eligible petitioner and Sec. 40-32-108 supplies the whole procedure. That mapping is officially corroborated rather than inferred - Public Chapter 268's own conforming amendments replaced the old citation to Sec. 40-32-101(g)(3) with Sec. 40-32-107 and the old Sec. 40-32-101(g) with Sec. 40-32-107(a)(1), and replaced procedural references to Sec. 40-32-101 with Sec. 40-32-108. Eligibility under Sec. 40-32-107(a) turns on the offence being on one of the enumerated Class C, Class D or Class E felony lists or within the misdemeanour category subject to its exclusion list, the offence having occurred on or after 1 November 1989 and prior to any conviction for an expunction-ineligible offence including federal and out-of-state offences, no previous expunction under subsection (a), (b) or (c), and fulfilment of every sentence requirement including all fines, restitution, court costs and other assessments, completion of imprisonment or probation, all release conditions, and any required year free from dependency on or abuse of alcohol or a controlled substance. The waiting period at Sec. 40-32-107(a)(3)(B) runs from completion of the sentence: five years for a misdemeanour or Class E felony and ten years for a Class C or Class D felony. Subsection (a)(4) directs the petitioner to Sec. 40-32-108, whose subsection (e) requires the petition and proposed order to be prepared by the office of the district attorney general and given to the petitioner to file. Public Chapter 719, effective 2026-04-14, rewrote the Sec. 40-32-108(d)(2) decision standard, preserving the rebuttable presumption for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E) while directing the court to weigh the petitioner's interest against the best interests of justice and public safety. Public Chapter 930, effective 2026-07-01 and applying only to offences committed on or after that date, relocated burglary under Sec. 39-13-1002 from the Class E list to the Class D list, which doubles the wait for that offence from five to ten years prospectively only.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court
Section 40-32-108(e) requires the petition and proposed order to be prepared by the district attorney general's office and given to the petitioner to be filed with the clerk. Both the Tennessee AOC and the TBI direct participants to request a conviction expungement packet from that office. LegalEase generates the participant's request and eligibility record; it does not generate the petition or the order, because those are prosecutor and court instruments.
Venue: Statewide statute with originating-court venue and prosecutor-office routing. The request goes to the office of the district attorney general for the judicial district of the convicting court, because Sec. 40-32-108(e) makes that office the preparer of the petition. The petition, once prepared, is filed by the petitioner with the clerk of the convicting court under Sec. 40-32-108(a). A person with convictions in several judicial districts deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. Section 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to T.C.A. Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed code and could not be retrieved from an official Tennessee source on 2026-08-06, so no figure is quoted. The superseded AOC-hosted fee figure is not used. Ask the clerk of the court where the petition is filed what it charges before filing. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner, and who may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- Where the eligibility requirements are satisfied there is a rebuttable presumption that the petition should be granted, which shifts the practical burden to the district attorney general to object. Public Chapter 719, effective 2026-04-14, rewrote T.C.A. Sec. 40-32-108(d)(2) and preserved that presumption for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), while providing that the court weighs the interest of the petitioner against the best interests of justice and public safety. The packet may describe the presumption; it may not state that the petition will be granted.
- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- Routing added by the integrated Tennessee 2026 route inventory decision, without any change to this route's own eligibility rules. A participant refused here because the conviction is outside the Sec. 40-32-107(a)(1) lists but who holds a gubernatorial pardon is evaluated under tn_post_pardon. A participant refused here only by the Sec. 40-32-107(a)(3)(A) predating condition because of a DUI conviction, who completed a certified recovery court programme with a ten-year interval, is evaluated under tn_recovery_court. The exclusion list is unchanged in both cases.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would

be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any felony, or any borderline Class C, D or E offence whose exact section cannot be matched against the current eligible list.
- Any other conviction anywhere on the record. The no-other-conviction requirement reaches federal and out-of-state offences that would be ineligible in Tennessee.
- Any unpaid court costs, fines or restitution.
- The district attorney general's office declines to prepare the petition, or indicates it will oppose.
- A previous expunction was granted under Sec. 40-32-107(a), (b) or (c), which closes the route for life.
- The participant is refused here but holds a gubernatorial pardon, or is refused only by the DUI predating condition and has completed a certified recovery court programme. Rather than stopping, the participant is routed to tn_post_pardon or tn_recovery_court respectively before any no-relief answer is given.
- Mapping the offence to its exact T.C.A. section and checking it against the current eligible list is not something an offence label or class can settle. The eligible lists at T.C.A. Sec. 40-32-107(a)(1) are enumerated section by section - Class C, Class D and Class E felony lists and a misdemeanour category with a long exclusion list - and the legislature has expanded them repeatedly, most recently by Public Chapter 930. The packet checks the current list rather than assuming, and any borderline offence goes to review.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. The petition is therefore a prosecutor instrument, and LegalEase does not generate it. What LegalEase generates is the participant's own written request to the district attorney general's office for the conviction-expunction packet, with the supporting eligibility record. Both the Tennessee AOC and the TBI direct participants to request a conviction expungement packet from the district attorney's office, which is the practical face of that provision.

THE PAGES IN THIS SET

- tn_eligible_conviction-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Expunge an eligible conviction)
- tn_eligible_conviction-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Expunge an eligible conviction)

ALTERNATIVE ROUTE SCREENING - EXPUNGE AN ELIGIBLE CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the alternative route screening component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any felony, or any borderline Class C, D or E offence whose exact section cannot be matched against the current eligible list.
- Any other conviction anywhere on the record. The no-other-conviction requirement reaches federal and out-of-state offences that would be ineligible in Tennessee.
- Any unpaid court costs, fines or restitution.
- The district attorney general's office declines to prepare the petition, or indicates it will oppose.
- A previous expunction was granted under Sec. 40-32-107(a), (b) or (c), which closes the route for life.
- The participant is refused here but holds a gubernatorial pardon, or is refused only by the DUI predating condition and has completed a certified recovery court programme. Rather than stopping, the participant is routed to tn_post_pardon or tn_recovery_court respectively before any no-relief answer is given.

PETITION - CLEAR A CASE AFTER COMPLETING JUDICIAL DIVERSION

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION AFTER SUCCESSFUL COMPLETION OF JUDICIAL DIVERSION, T.C.A. Sec. 40-32-106(D) AND Sec. 40-35-313

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(d)(1); T.C.A. Sec. 40-32-106(d)(2); T.C.A. Sec. 40-32-106(d)(3); T.C.A. Sec. 40-35-313; T.C.A. Sec. 40-32-102(c); T.C.A. Sec. 8-21-401; T.C.A. Sec. 40-39-202 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Judicial diversion under T.C.A. Sec. 40-35-313 is a conditional guilty plea with no judgment of conviction entered: the court defers adjudication and places the person on probation, typically six to eighteen months, and on successful completion discharges and dismisses the case. A completed judicial diversion is not a conviction under Tennessee law. Under Sec. 40-32-106(d)(1) the person may then petition for expunction where the charges were dismissed as a result of successful completion of a judicial diversion programme pursuant to Sec. 40-35-313. Public Chapter 268 amended Sec. 40-35-313(b) and (c) to replace the old Sec. 40-32-101 subdivision citations with references to Sec. 40-32-101 and to title 40, chapter 32, which is the official cross-reference confirming the route survived the reorganization. The clerk's fee under Sec. 8-21-401 applies, the TBI certificate is required, and the Sec. 40-32-106(d)(2) sexual-offence bar applies here too. Federal systems and security-clearance background checks may still see the underlying guilty plea, which should be stated to every judicial diversion participant.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....

.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - diversion kind] Was it pretrial diversion, where you did not plead guilty and prosecution was suspended, or judicial diversion, where you entered a plea but no judgment of conviction was entered?
.....
.....

[C9 - successfully completed] Did you successfully complete everything the diversion required, and were the charges then dismissed?
.....
.....

[C10 - sexual offence] Was the offence a sexual offence or a violent sexual offence as Tennessee defines those for the registry? Those can be diverted but cannot be expunged.
.....
.....

[C11 - petition filed before] Have you already filed a petition to expunge this case?

.....
.....

[C12 - conditional plea] Did you enter a guilty plea that the court held without entering a judgment of conviction, and then complete probation?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(d)(1); T.C.A. Sec. 40-32-106(d)(2); T.C.A. Sec. 40-32-106(d)(3); T.C.A. Sec. 40-35-313; T.C.A. Sec. 40-32-102(c); T.C.A. Sec. 8-21-401; T.C.A. Sec. 40-39-202.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

CERTIFICATION AND FEE INSTRUCTIONS - CLEAR A CASE AFTER COMPLETING JUDICIAL DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the certification and fee instructions component prescribed by the committed route contract.

ROUTE DIRECTIONS

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- A petition is still required after diversion. Completing diversion dismisses the case but leaves it visible until a separate expunction petition is filed, and this is the second most common Tennessee misunderstanding after the not-automatic point.
- Federal systems and security-clearance background checks may still see the underlying guilty plea from a judicial diversion. That should be stated to every judicial diversion participant.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR A CASE AFTER COMPLETING JUDICIAL DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction after successful completion of judicial diversion, T.C.A. Sec. 40-32-106(d) and Sec. 40-35-313.

Judicial diversion under T.C.A. Sec. 40-35-313 is a conditional guilty plea with no judgment of conviction entered: the court defers adjudication and places the person on probation, typically six to eighteen months, and on successful completion discharges and dismisses the case. A completed judicial diversion is not a conviction under Tennessee law. Under Sec. 40-32-106(d)(1) the person may then petition for expunction where the charges were dismissed as a result of successful completion of a judicial diversion programme pursuant to Sec. 40-35-313. Public Chapter 268 amended Sec. 40-35-313(b) and (c) to replace the old Sec. 40-32-101 subdivision citations with references to Sec. 40-32-101 and to title 40, chapter 32, which is the official cross-reference confirming the route survived the reorganization. The clerk's fee under Sec. 8-21-401 applies, the TBI certificate is required, and the Sec. 40-32-106(d)(2) sexual-offence bar applies here too. Federal systems and security-clearance background checks may still see the underlying guilty plea, which should be stated to every judicial diversion participant.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. Section 40-32-106(d)(3) requires the appropriate clerk's fee pursuant to T.C.A. Sec. 8-21-401 for destroying the records, which is the asymmetry a participant should be warned about: diversion is a non-conviction outcome but it is not free, whereas a straight dismissal is. The amount is set by Sec. 8-21-401 and no figure is quoted here. Fee waiver as recorded: No indigency or fee-waiver provision appears in the reorganized Sec. Sec. 40-32-106 to 40-32-110. The TBI operates an unpublished indigency procedure for its separate diversion certificate fee, requiring a form signed by the judge that it supplies on request and does not publish. No waiver mechanism for the clerk's expunction fee was identified.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The

clerk serves the petition on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- A petition is still required after diversion. Completing diversion dismisses the case but leaves it visible until a separate expunction petition is filed, and this is the second most common Tennessee misunderstanding after the not-automatic point.
- Federal systems and security-clearance background checks may still see the underlying guilty plea from a judicial diversion. That should be stated to every judicial diversion participant.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The offence was a sexual offence or a violent sexual offence as defined in T.C.A. Sec. 40-39-202. It could be diverted but it cannot be expunged, and the participant needs to be told that plainly rather than sold a petition.
- The diversion was not successfully completed, or completion is disputed.
- The participant's goal involves federal employment or a security clearance, since a judicial diversion guilty plea may remain visible there.
- The participant's goal involves federal employment or a security clearance. Federal systems may still see the underlying guilty plea from a judicial diversion even after expunction.

THE PAGES IN THIS SET

- tn_judicial_diversion-petition-1: the composed petition, on this route's own statutory ground (Clear a case after completing judicial diversion)

REQUEST TO THE DISTRICT ATTORNEY GENERAL - EXPUNGE UP TO TWO OFFENCES, ONCE IN YOUR LIFE

TO: The office of the District Attorney General for the judicial district of the convicting court
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - EXPUNGE UP TO TWO OFFENCES, ONCE IN YOUR LIFE

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org
DATE OF BIRTH: 1968-12-31

ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
.....
.....

Item 2. What is the docket or case number?
.....
.....

Item 3. What was the charge, and exactly how did the case end?
.....
.....

Item 4. On what date did the case end?
.....
.....

Item 5. What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

Item 6. List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

Item 7. Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

Item 8. What is the exact T.C.A. section you were convicted under? The offence name and class are not enough - Tennessee's eligible lists are section by section.

.....

.....

Item 9. On what date was the offence committed? This matters independently of the conviction date, because a 2026 change applies only to offences committed on or after 1 July 2026.

.....

.....

Item 10. Did the conviction occur on or after 1 November 1989?

.....

.....

Item 11. On what date did you finish the entire sentence - including any imprisonment or probation, all release conditions, and every fine, restitution amount, court cost and other assessment?

.....

.....

Item 12. Is every fine, restitution amount, court cost and other assessment paid in full? Anything outstanding means the sentence is not complete and the clock has not started.

.....

.....

Item 13. Have you ever had a conviction expunged in Tennessee before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)? This route is available once in a lifetime and a previous grant under (a), (b) or (c) closes it. A grant under (e) is recorded because the statute is asymmetric on the point, and no bar is applied against you that the subsection does not state.

.....

.....

Item 14. Did you hold a commercial driver licence at the time, and did the offence involve a controlled substance or a commercial motor vehicle?

.....

.....

Item 15. Did your sentence require a period free from dependency on or abuse of alcohol or a controlled substance? If so, have you met at least one year of it?

.....

.....

Item 16. How many offences are you asking to clear? The limit is two.

.....

.....

Item 17. Are the two offences both misdemeanours, or one felony and one misdemeanour? Two felonies cannot be done on this route.
.....
.....

Item 18. Did the offences happen at the same time and place as part of one continuous incident with a single intent? If so they may count as one, leaving your second slot open.
.....
.....

Item 19. This pathway can be used once in your life. Do you have any other conviction that might become eligible later? Using it now closes the door on that.
.....
.....

Item 20. Have you received a pardon from the Governor for this conviction? If you have, a different route may reach it even where this one cannot.
.....
.....

Item 21. If a DUI conviction is what is standing in the way: have you successfully completed a certified recovery court programme, and did the offence you want cleared happen at least ten years after that DUI conviction?
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

PROCESS AND EXPECTATION INSTRUCTIONS - EXPUNGE UP TO TWO OFFENCES, ONCE IN YOUR LIFE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of up to two offences, T.C.A. Sec. 40-32-107(b) with procedure at Sec. 40-32-108.

Read at source on 2026-08-06. Section 40-32-107(b) defines an eligible petitioner as a person seeking expunction of no more than two offences. Each offence must be eligible under Sec. 40-32-107(a)(1) and must have occurred prior to any conviction for an expunction-ineligible offence, including ineligible federal and other-state convictions. The permitted combinations are exhaustive: two misdemeanours, or one felony and one misdemeanour. Two felonies are not available on this route. At filing there must be five years since completion of sentence for any misdemeanour or Class E felony being expunged and ten years for any Class C or Class D felony being expunged, every sentence requirement must be fulfilled for each offence, and the person must not previously have been granted expunction under subsection (a), this subsection (b) or subsection (c). Subsection (b)(2) provides a single-episode merger mirroring (a)(1)(F): contemporaneous same-location single-intent convictions count as a single offence for the purposes of the two-offence limit, so one episode does not consume both slots. Subsection (b)(3) directs the petitioner to Sec. 40-32-108, so the same DA-prepared petition procedure applies. The reciprocal bars across (a), (b) and (c) are lifetime, which is why using this pathway forecloses a later second use and makes the timing decision consequential.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court
Section 40-32-108(e) requires the petition and proposed order to be prepared by the district attorney general's office and given to the petitioner to be filed with the clerk. Both the Tennessee AOC and the TBI direct participants to request a conviction expungement packet from that office. LegalEase generates the participant's request and eligibility record; it does not generate the petition or the order, because those are prosecutor and court instruments.
Venue: Statewide statute with originating-court venue and prosecutor-office routing. The request goes to the office of the district attorney general for the judicial district of the convicting court, because Sec. 40-32-108(e) makes that office the preparer of the petition. The petition, once prepared, is filed by the petitioner with the clerk of the convicting court under Sec. 40-32-108(a). A person with convictions in several judicial districts deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. Section 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to T.C.A. Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed code and could not be retrieved from an official Tennessee source on 2026-08-06, so no figure is quoted. The superseded AOC-hosted fee figure is not used. Ask the clerk of the court where the petition is filed what it

charges before filing. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner, and who may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- Where the eligibility requirements are satisfied there is a rebuttable presumption that the petition should be granted, which shifts the practical burden to the district attorney general to object. Public Chapter 719, effective 2026-04-14, rewrote T.C.A. Sec. 40-32-108(d)(2) and preserved that presumption for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), while providing that the court weighs the interest of the petitioner against the best interests of justice and public safety. The packet may describe the presumption; it may not state that the petition will be granted.
- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- Routing added by the integrated Tennessee 2026 route inventory decision, without any change to this route's own eligibility rules. A participant refused here because the conviction is outside the Sec. 40-32-107(a)(1) lists but who holds a gubernatorial pardon is evaluated under tn_post_pardon. A participant refused here only by the Sec. 40-32-107(a)(3)(A) predating condition because of a DUI conviction, who completed a certified recovery court programme with a ten-year interval, is evaluated under tn_recovery_court. The exclusion list is unchanged in both cases.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section

numbering.
- Any felony, or any borderline Class C, D or E offence whose exact section cannot be matched against the current eligible list.
- Any other conviction anywhere on the record. The no-other-conviction requirement reaches federal and out-of-state offences that would be ineligible in Tennessee.
- Any unpaid court costs, fines or restitution.
- The district attorney general's office declines to prepare the petition, or indicates it will oppose.
- A previous expunction was granted under Sec. 40-32-107(a), (b) or (c), which closes the route for life.
- The strategic question of whether to use the one lifetime opportunity now or wait for a third conviction to become eligible. That is advice rather than form-filling and it belongs with a lawyer.
- Whether two convictions arose from a single criminal episode, which decides whether the participant is spending one slot or two.
- The participant is refused here but holds a gubernatorial pardon, or is refused only by the DUI predating condition and has completed a certified recovery court programme. Rather than stopping, the participant is routed to tn_post_pardon or tn_recovery_court respectively before any no-relief answer is given.
- Mapping the offence to its exact T.C.A. section and checking it against the current eligible list is not something an offence label or class can settle. The eligible lists at T.C.A. Sec. 40-32-107(a)(1) are enumerated section by section - Class C, Class D and Class E felony lists and a misdemeanour category with a long exclusion list - and the legislature has expanded them repeatedly, most recently by Public Chapter 930. The packet checks the current list rather than assuming, and any borderline offence goes to review.
- The two-offence pathway is once per lifetime, and the reciprocal bars across Sec. 40-32-107(a), (b) and (c) mean a single earlier grant closes it. A participant with two eligible offences now and a third that becomes eligible later should be told that using it now closes the door.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. The petition is therefore a prosecutor instrument, and LegalEase does not generate it. What LegalEase generates is the participant's own written request to the district attorney general's office for the conviction-expunction packet, with the supporting eligibility record. Both the Tennessee AOC and the TBI direct participants to request a conviction expungement packet from the district attorney's office, which is the practical face of that provision.

THE PAGES IN THIS SET

- tn_two_offense-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Expunge up to two offences, once in your life)
- tn_two_offense-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Expunge up to two offences, once in your life)

ALTERNATIVE ROUTE SCREENING - EXPUNGE UP TO TWO OFFENCES, ONCE IN YOUR LIFE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the alternative route screening component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any felony, or any borderline Class C, D or E offence whose exact section cannot be matched against the current eligible list.
- Any other conviction anywhere on the record. The no-other-conviction requirement reaches federal and out-of-state offences that would be ineligible in Tennessee.
- Any unpaid court costs, fines or restitution.
- The district attorney general's office declines to prepare the petition, or indicates it will oppose.
- A previous expunction was granted under Sec. 40-32-107(a), (b) or (c), which closes the route for life.
- The strategic question of whether to use the one lifetime opportunity now or wait for a third conviction to become eligible. That is advice rather than form-filling and it belongs with a lawyer.
- Whether two convictions arose from a single criminal episode, which decides whether the participant is spending one slot or two.
- The participant is refused here but holds a gubernatorial pardon, or is refused only by the DUI predating condition and has completed a certified recovery court programme. Rather than stopping, the participant is routed to tn_post_pardon or tn_recovery_court respectively before any no-relief answer is given.